

25STCP04575 25STCP04575

County: los-angeles

Division: Civil Law and Motion

Department: 834

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Case Number: 25STCP04575 Hearing Date: August 18, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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CHURCH OF SCIENTOLOGY INTERNATIONAL

Petitioner(s),

vs.

CITY OF
LOS ANGELES,

Respondent(s).

Case No.:

25STCP04575

Hearing Date:

August 18, 2026

[TENTATIVE]

ORDER RE: MOTION TO AMEND PETITION

Petitioner Church of Scientology ("Petitioner") seeks leave to amend its petition.

The motion is granted.

I.

Background

1.

Factual Allegations

Petitioner alleges that on August 5, 2013, Leah Remini ("Remini") filed a missing person report with the Los Angeles Police Department ("LAPD") regarding the wife ("Miscavige") of Petitioner's ecclesiastical leader. (Pet., ¶¶ 11-12.) Two officers confirmed Miscavige was not missing, and the investigation was closed. (Pet., ¶ 12.) LAPD announced the results of the investigation on August 8, 2013. (Pet., ¶ 12.) Remini continued thereafter to publicly contend Miscavige was missing. (Pet., ¶ 13.) In 2017, Members of the San Bernardino Sheriff's Department met with Miscavige and found her to be alive and well. (Pet., ¶ 13.)

LAPD again investigated the matter beginning November 14, 2022, assigning it to a detective in Internal Affairs. (Pet., ¶¶ 15-16.) During this investigation, a blogger obtained the contents of the missing person file, including photographs, police reports, video footage, and Miscavige's fingerprints. (Pet., ¶ 16.) The blogger published the contents on June 26, 2023 and July 2, 2023. (Pet., ¶ 16.) Remini also published the information on July 2, 2023. (Pet., ¶ 16.) LAPD investigated and determined that the source of the leak could not be determined. (Pet., ¶ 17.)

On October 1, 2025, Petitioner submitted a California Public Records Act ("CPRA") request to LAPD seeking:

"The Crime Summary Report of the crime committed by an unidentified LAPD employee which was the leak of confidential information from a Missing Person Report file. The initial missing person report was filed with the LAPD by Leah Remini and former LAPD Detective Kevin Becker on August 5, 2013, and leaked by someone in the LAPD to a blogger, Yashar Ali, who then

posted this confidential information from this missing person file on the Internet on June 26, 2023.” (Pet., ¶ 19.)

On October 28, 2025, LAPD stated it conducted a search and located no responsive records. (Pet., ¶ 21.)

2.

Procedural History

On November 25, 2025, Petitioner filed this writ action against the Respondent. On December 30, 2025, Respondent filed its answer.

On June 16, 2026, the court found that 25STCP04575 (the instant action), 25STCP04729, 26STCP00252, and 26STCP01520 are related within the meaning of California Rules of Court, rule 3.300(a), and designated this action as the lead case.

On June 17, 2026, Petitioner filed the instant motion for leave to amend its petition. On August 5, 2026, Petitioner filed a notice of errata to its proposed first amended petition. Also on August 5, 2026, Respondent filed its opposition. On August 12, 2026, Petitioner filed its reply.

II.

Evidentiary Objections

Respondent objects to (1) Petitioner's Exhibit 2; (2) Petitioner's Exhibit 1, except transcript pages 28 through 31; (3) block quotations from Exhibit 1 in the reply; and (4) unsworn factual assertions in the reply. The evidence is provided for the first time on reply without authentication. The objections are sustained.

III.

Discussion

Petitioner seeks leave to amend its petition to add a fourth cause of action for mandamus to prohibit LAPD “from misrepresenting to requesters that no records exist responsive to a CPRA request when the Department knows that is not true” and declaratory and injunctive relief. (Proposed First Amended Petition [“Proposed FAP”][1] at

10-12.)

California courts employ a liberal approach to amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) Pursuant to this liberal policy, requests for leave to amend will normally be granted unless (a) the party seeking to amend has been dilatory in bringing the proposed amendment before the court, and (b) the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Absent a showing of prejudice, a delay in seeking an amendment alone does not justify denial of leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-65 [*"Higgins"*].) Moreover, where the plaintiff is the party seeking leave to amend, mere proximity to the trial date, absent any prejudice, does not constitute ground for denial if the plaintiff is amenable to a continuance of the trial date. (*Mesler v. Bragg Mgt. Co.* (1985) 39 Cal.3d 290, 297.)

The reason for a liberal policy is that if a plaintiff has a good cause of action, which by accident or mistake he has failed to set out in his complaint, the court should permit him to amend. (*Higgins* at 564-65.) Hence, where an amendment provides merely the addition of matters essential to make the original cause of action complete, effecting no change in the nature of the case and thus causing no surprise or prejudice to the adverse party, the amendment should be allowed by the court. (*Id.* at 565.)

Where a proposed amendment would be futile, the court may deny leave to amend. (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 231.) However, "even if the proposed legal theory is a novel one, 'the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.' " (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048, citing *California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280 [*"California Casualty"*], disapproved on other grounds in *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390, 407, fn. 11.)

Respondent's remaining arguments—e.g., that Government Code section 7923.000 bars Petitioner's requested relief, that *City of Gilroy v.*

Superior Court, (January 15, 2026) 19 Cal.5th 38 (“Gilroy”) limits declaratory relief to the parties before the court, and that the proposed amendment rests on facts that Respondent disputes—are merits-based challenges to the form and substance of the Proposed FAP and are not adjudicated at this stage. The legal sufficiency of a pleading is ordinarily tested by demurrer or motion to strike. (See Kittredge Sports Co., supra, 213 Cal.App.3d at 1048; California Casualty, supra, 173 Cal.App.3d at 280-81.) Leave to amend is denied as futile only when the proposed amendment is foreclosed by controlling precedent, which has not been demonstrated here.

Because the Court does not reach the merits of a party's legal theories on a motion for leave to amend, the instant ruling should not be construed as an endorsement of Petitioner's interpretation of Gilroy, its characterization of the CPRA exemptions, or its description of the underlying evidence. Those issues may be raised, if appropriate, by properly noticed motion where the parties can brief the legal questions and the Court can evaluate them adequately.

Both parties also seek case management or discovery related directives through this motion. Again, such requests are not properly before the Court via the instant motion. Such matters must be presented by stipulation or properly noticed motion, and/or can be raised at case management conferences. The only issue presented by the instant motion is whether Petitioner should be granted leave to amend under the governing liberal standard. That standard is met here.

IV.

Conclusion

The motion is GRANTED. Petitioner is directed to file its amended petition within two court days. Respondent has thirty calendar days from the filing of the amended petition to respond to the amended petition.

The Trial Setting Conference is CONTINUED to September 24, 2026 at 9:30 a.m.

Moving party is ordered to give notice.

Date: August 18, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Petitioner provides the Proposed FAP as Exhibit 3 to the Moxon Declaration.